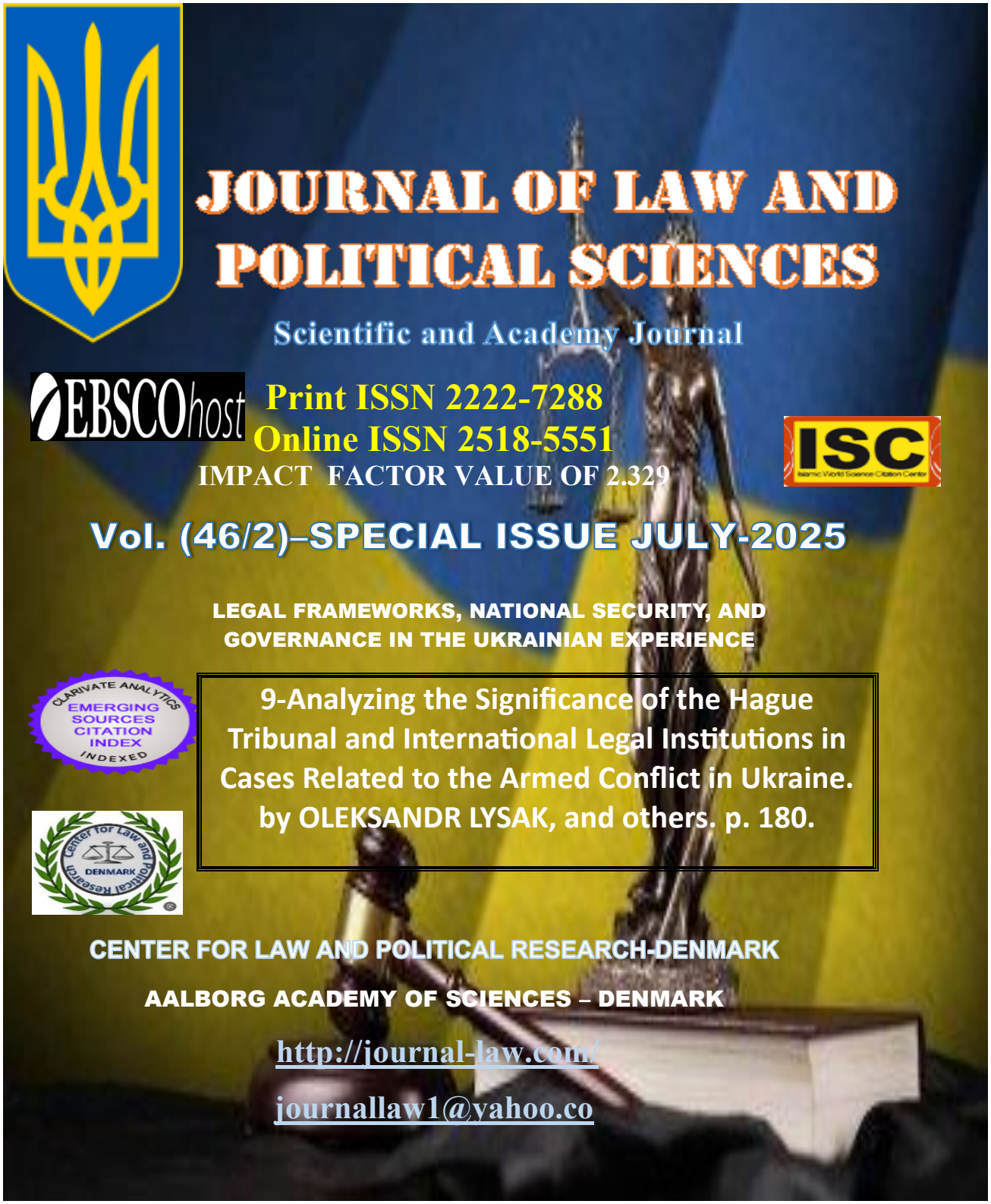

JOURNAL OF LAW AND POLITICAL SCIENCES
Scientific and Academy Journal
EBSCOhost
Print ISSN 2222-7288
Online ISSN 2518-5551
IMPACT FACTOR VALUE OF 2.329
ISC
Vol. (46/2)–SPECIAL ISSUE JULY-2025
LEGAL FRAMEWORKS, NATIONAL SECURITY, AND GOVERNANCE IN THE UKRAINIAN EXPERIENCE
CLARIVATE ANALYTICS EMERGING SOURCES CITATION INDEX INDEXED
9-Analyzing the Significance of the Hague Tribunal and International Legal Institutions in Cases Related to the Armed Conflict in Ukraine. by OLEKSANDR LYSAK, and others. p. 180.
Center for Law and Political Research DENMARK
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JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

JOURNAL OF LAW AND POLITICAL SCIENCES

SCIENTIFIC AND ACADEMY JOURNAL

Print ISSN 2222-7288

Online ISSN 2518-5551

IMPACT FACTOR VALUE OF 2.701

VOL. (46/2) SPECIAL ISSUE JULY 2025

FIRST EDITION 2011

SPECIAL ISSUE

LEGAL FRAMEWORKS, NATIONAL SECURITY, AND GOVERNANCE IN THE UKRAINIAN EXPERIENCE

A GROUP OF UNIVERSITY GRADUATES IN UKRAINE

PREPARED

CENTER FOR LAW AND POLITICAL RESEARCH – DENMARK

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JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
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VOL. 45-2-ISSUE 3-June 2025 -Special issue
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JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
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IMPACT FACTOR 2.329
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P.ISSN 2222-7288 E. ISSN 2518-5551
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P.ISSN 2222-7288 E. ISSN 2518-5551
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IMPACT FACTOR 2.329
First edition 2011

Contents of Vol. No. (46/2) of issue July-2025

1. A Comparative Analysis of Parliamentary Roles in Public Administration. By VALENTYNA GOSHOVSKA and others. p. 10.
2. Balancing State Discretion and the Rule of Law: Challenges, Opportunities, and Prospects in the Era. By. VLADYSLAV NOVITSKYI. and others, p. 35.
3. The Right to Peace as a Fundamental Human Need: The Case for Global Consolidation. By NATALIIA ONISHCHENKO and others, p. 56.
4. The Peculiarities of Inter-Institutional Interaction of Transregional Cooperation Legal Regulation: Trends in the Contemporary EU. By VIKTOR SHCHERBAK and others, p. 80.
5. Vital Security Paradigm in the New Millennium: Coordinate System and State-of-the-Art. By IGOR RYZHOV and others. p. 94.
6. Providing Psychological Assistance to Police Forces in Wartime: The Ukrainian Experience. By OLENA FEDORENKO and others. p. 122.
7. The Study of Military Conflict: Human Existence in Times of Distress, by OLGA RUDENKO. and others. p.146.
8. Legal Framework for the Professional Selection of Forensic Experts to Ensure Impartial Judgements. By ROMAN KIRIN. and others. p. 161.
9. Analyzing the Significance of the Hague Tribunal and International Legal Institutions in Cases Related to the Armed Conflict in Ukraine. by OLEKSANDR LYSAK, and others. p. 180.
10. Ukrainian State Border Control: Legislative Support for the Prevention of Violations. By YAROSLAV KUSHNIR. P. 201.
11. Formation of the Judicial System in Accordance with the Institution of Human Rights. LIDIIA MOSKVYCH. and others. p. 218.
12. Long-term Thinking in Public Governance under the Digital Era. By IRYNA PIATNYCHUK. and others. p. 246.
13. NATO as a Collective Security Organization in the EU after the Outbreak of War in Ukraine. by OLHA DZHYHORA and others. p. 255.
14. Management Approaches to Ensuring National Security: Legal and Organizational Challenges. By VIKTORIIA SYDORENKO. and others. p. 272.
15. Legal Aspects of Penalties for Public Asset Misuse: Challenges of Law Enforcement studying. By IGOR PARYZKYI. and others. p. 299.
16. The Ukraine War and the World Balance of Power: The Perspectives of a Multipolar World. By VASYL VERESHCHAK and others. p. 323.

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011
(9)

ANALYZING THE SIGNIFICANCE OF THE HAGUE TRIBUNAL AND INTERNATIONAL LEGAL INSTITUTIONS IN CASES RELATED TO THE ARMED CONFLICT IN UKRAINE

Receipt 21May	Approval 30 June	Publishing July 2025

OLEKSANDR LYSAK
Aspirant, Employment, Department of Constitutional Law, V. M. Koretsky Institute of State and Law, Kyiv, Ukraine.- academy_knowledge@meta.ua
https://orcid.org/0009-0004-6106-8452

VITALIY GDYCHINSKY
PhD in Law, Doctoral Researcher, Department of International and European Law, Faculty of Law and International Relations, State University "KAI", Kyiv, Ukraine.- academiq@ukr.net
https://orcid.org/0009-0008-8674-5340

YURII HUTSULIAK
PhD, Senior Teacher, Department of Criminal Procedure and Criminology, Faculty #1, Lviv State University of Internal Affairs, Lviv, Ukraine.- yurko_gucul@ukr.net
https://orcid.org/0000-0002-8334-7127

OLEKSANDR SAVKA
Candidate of Legal Sciences, Associate Professor of the Department of Law Enforcement and Anti-Corruption Activities, Volodymyr the Great Educational and Scientific Institute of Law, PJSC "Higher Education Institution "Interregional Academy of Personnel Management", Kyiv, Ukraine.
https://orcid.org/0000-0002-1723-3412
savka30@ukr.net

KATERYNA ZVIERIEVA
PhD in International Law, Senior Lecturer of the Department of International, Civil and Commercial Law, Faculty of International Trade and Law, State University of Trade and Economics, Kyiv, Ukraine.
https://orcid.org/0000-0003-2539-7035
zvereva.kateryna@gmail.com

ABSTRACT

The study of the role of international judicial bodies in the context of the war in Ukraine is of particular relevance due to the need to ensure justice, document war crimes and restore international legal order. To analyse international legal acts and explore modern legal mechanisms used by international judicial bodies to bring Russian citizens to justice for crimes related to military aggression against Ukraine. An interdisciplinary approach combining several scientific methods of cognition, including synthesis, systematisation, and generalisation, was applied; the study

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

included a historical analysis of international legal proceedings and an analysis of international law, including regulations relating to war crimes committed on the territory of Ukraine. The article examines the multidimensional nature of the activities of international judicial institutions, particularly the ICC, in recording the crimes of the aggressor state, issuing arrest warrants, and establishing the rule of law in the context of Russia's war against Ukraine. The systematic activity of international judicial bodies is a key factor in combating impunity and ensuring justice, which forms a new legal framework for overcoming the consequences of military aggression.

Keywords: international law, international justice, criminal justice, rule of law, military tribunal, war crime, war, military aggression, law and order, criminal proceedings, evidence, enforcement of rights.

1- INTRODUCTION

The International Criminal Court (ICC) operates based on the Rome Statute and is the first permanent institution to prosecute individuals responsible for genocide, war crimes, and crimes against humanity. The Court is headquartered in The Hague (the Netherlands), but upon request, its sessions can be held in any city in the countries that have ratified the Rome Statute. States that have ratified the Statute become parties to the ICC, and crimes committed by their citizens or on their territory become subject to its jurisdiction. Funding for the ICC's activities is also provided by the member states of the Rome Statute and comes from international organisations, individuals, corporations, and other governments voluntarily[1]. The International Criminal Court has a complex organisational structure that ensures effective operation and distribution of powers among its key organs, as shown in Figure 1. This structure helps to ensure the effective separation of functions, independence and accountability of each organ of the ICC, which is critical to achieving international justice.

This institution is based on the rule of law, allowing it to ensure international justice. The Court's jurisdiction is complementary, meaning it intervenes only in cases of failure of national legal systems to deliver effective justice. Given this, the ICC's activities are based on the principles of independence from state power, universality and

[1] **ICC (2020). Understanding the International Criminal Court. https://www.icc-cpi.int/sites/default/files/Publications/understanding-the-icc.pdf**

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
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First edition 2011

compliance with international standards of justice. Although the ICC is not a part of the official structures of the United Nations (UN), its functions include the ability to initiate cases upon the request of the UN Security Council.

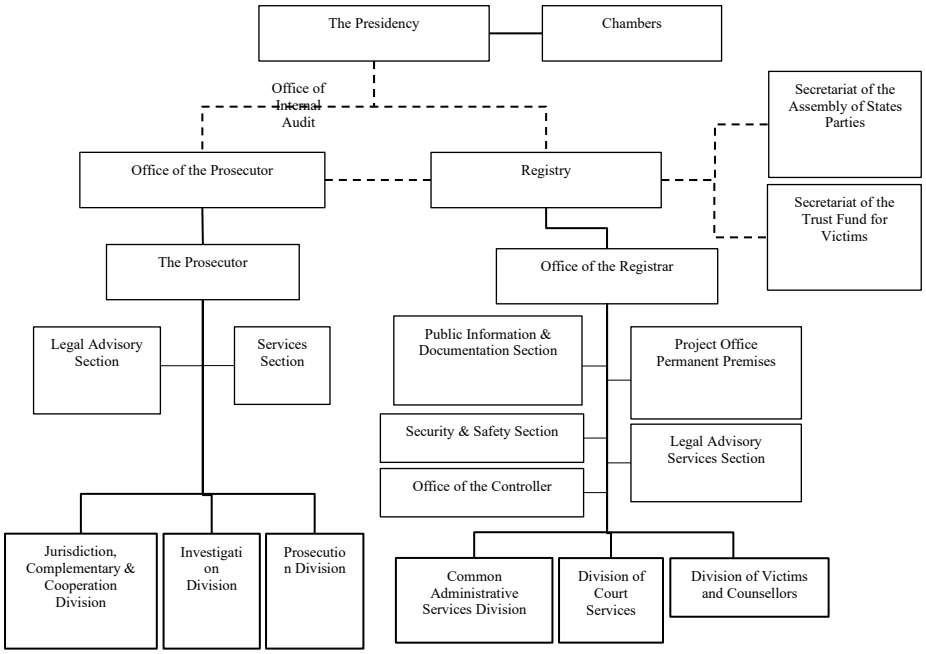


Figure 1. Organisational structure of the International Criminal Court
Source: compiled by the author based on Human Rights Watch[2]

Currently, the ICC's priorities under the Strategic Plan 2023-2025[3] include, first and foremost, focusing on victims of sexual and gender-based crimes (SGBC) and crimes against children (CAC) by empowering the Office of the Prosecutor (OTP) and strictly adhering to existing ICC policies and standards in these categories of crimes, and mainstreaming a gender perspective in every organ and department of the ICC by raising awareness of gender issues through the empowerment of the Court's Focal Point for Gender Equality and the OTP Gender Focal Point. Although the priorities are mainly related to strategic objectives 3 and 8, the ICC continues to work in all the areas outlined in Figure 2.

[2] **Human Rights Watch (2008). Courting *History: The Landmark International Criminal Court's First Years*. USA: Human Rights Watch. https://www.hrw.org/reports/2008/icc0708/icc0708web.pdf**

[3] **ICC (2023). International Criminal Court Strategic Plan 2023-2025. *International Criminal Court.* https://www.icc-cpi.int/sites/default/files/2023-08/2023-strategic-plan-icc-v.2.pdf**

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P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
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I. Ensuring the effective and timely performance of the ICC's core functions, including preliminary examinations, investigations, trials and reparations	II. Maintaining and developing a system of reparations and support for victims at all stages of ICC proceedings in cooperation with the Trust Fund for Victims
III. Implementation of a gender approach and incorporation of a gender perspective in all aspects of the ICC's work	IV. Political support, expansion of cooperation mechanisms and operational support to parties under investigation, including forensic examinations, investigations, witness protection, execution of arrest warrants and court proceedings
V. Engaging States Parties and other stakeholders in developing innovative strategies to strengthen the capacity of the Rome Statute system to address shared responsibility for closing the impunity gap.	VI. Ensuring continued professionalism, commitment and integrity in the performance of all functions and tasks of the ICC
VII. Maintaining and improving the ISS personnel management system by ensuring safety in the work environment	VIII. Achieving equitable Gender-Responsive Governance and Budgeting (GRGB) at all levels, including at senior management positions, ensuring equal access of women and men to decision-making
IX. Ensuring effective management of the ICC's resources by increasing efficiency, accountability, flexibility and transparency in their use and maintaining the stability and risk resilience of the key institutions of the ICC	X. Put forward for discussion and improve the existing strategy for completing investigations

Figure 2. Strategic objectives of the International Criminal Court
Source: compiled by the author based on ICC[4]

In addition, a significant factor in transforming the context of the functioning of international judicial bodies, in particular the ICC, is several complex challenges for the body, which Russia's full-scale invasion of Ukraine has caused. The key issues related to the escalation of the conflict include, first and foremost, the need to address the unprecedented scale of war crimes and crimes against humanity, ensure adequate documentation of the evidence base in the context of hostilities, and strengthen cooperation with Ukrainian justice authorities. Also, the need for the ICC to intervene in the process of investigating and punishing those responsible for war crimes on the territory of Ukraine raises the issue of the limited influence of the ICC in the context of jurisdiction over states that are not parties to the Rome Statute, which requires the development of new approaches to strengthen the universality of international justice. The issue has been partially resolved on one side of the conflict (Ukraine ratified the Rome Statute on January 1 2025). Nonetheless, Russia's refusal to sign presents a challenge in identifying the perpetrators, as the arrest warrant approved by the ICC for Russian officials can only be executed on the territory of states that are parties to the Rome Statute.

As a result, the judiciary continues to work towards achieving just and swift justice, as this will effectively address the issue of escalating workload in the body's

[4] **ICC (2023).** ***Id.***

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P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
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First edition 2011

departments. The operational pace and flexibility of the OTP will continue to increase, resulting in additional strain on the rest of the ICC. Since States Parties ultimately determine the amount of the ICC's annual budget based on their annual budget requests, the ICC will persist in implementing optimal methods for managing its workload with the allocated resources.

This article aims to analyse the essence and development of international justice in the context of the functioning of the International Criminal Court (ICC) and other international judicial bodies in the context of increased geopolitical tension due to the escalation of Russian aggression in Ukraine.

Literature review

The analysis of the role of the International Criminal Court (ICC) and other international judicial bodies in the context of the war in Ukraine is the subject of research by many scholars who consider the legal, political and social aspects of their activities in particular, Avci[5], Dutton and Sterio[6], Imoedemhe[7], Rynkun-Werner et al.[8] and others. Giving priority to resolving conflicts with the use of military force fundamentally involves violations of laws and the use of prohibited means and methods of warfare associated with violations of fundamental human rights[9]; therefore, the international community's desire for peaceful resolution of international conflicts and achievement of justice is an opportunity to prevent them or promptly eliminate the consequences and bring the perpetrators to justice[10].

The relevance of this topic for the scientific community is due to the need for a multilateral and coordinated response of the international community to the outbreak of a full-scale war in Ukraine in early 2022. In this particular context, international criminal law and international cooperation between states and international organisations play a pivotal role in combating impunity for those responsible for

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[5] **Avci, M. (2023). Arresting Putin: Easier Said Than Done.** ***South East Europe & Black Sea Region*****, *8*, 32-38. https://peacehumanity.org/wp-content/uploads/2023/06/SEE-BSR-Issue-8.pdf#page=32**

[6] **Dutton, Y., & Sterio, M. (2022). The war in Ukraine and the legitimacy of the International Criminal Court.** ***American University Law Review*****, *72*, 779-811. https://ssrn.com/abstract=4235675**

[7] **Imoedemhe, O. (2023). The International Criminal Court: Is the Crime of Aggression in Ukraine.** ***International and Comparative Law Review*****, *23*(1), 27-52. https://doi.org/10.2478/iclr-2023-0002**

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[10] **Trindade, A. A. C. (2020). Peaceful Settlement Of International Disputes: Current State And Perspectives. In** ***International Law for Humanity*** **(531-566). https://doi.org/10.1163/9789004425217_026**

flagrant crimes committed against the Ukrainian populace[11]. In particular, Ablamskyi et al.[12] note the wide range of support resources available to the ICC, compared to its previous international investigations, to prosecute alleged war crimes and crimes against humanity, as highlighted in its prosecution policy documents. Shcherbaniuk and Sinkevych[13] note that non-governmental organisations, including human rights organisations, have discovered new areas of work during the war in Ukraine, including the collection of evidence of crimes committed by the Russian army on the ground, as well as expanded channels of cooperation with state authorities and the possibility of international justice bodies taking into account the information collected. In this context, direct interaction between states and non-state actors for negotiations is also important[14].

Several key theses have supported the ongoing academic debate on the need for Ukraine to ratify the Rome Statute. Murachov[15] notes Ukraine's capabilities as a full participant in all ICC processes, which include additional guarantees for the prosecution of those responsible for Russian aggression for grave crimes. Similar conclusions were reached by Drozdov et al.[16], Hrushko[17], Pymenova and Kuzmenko[18]: they believe that the implementation of the Rome Statute into Ukrainian legislation and its further ratification in the long term will ensure the prosecution of persons guilty of international crimes under the jurisdiction of the ICC. In addition, Krupchan et al.[19] that

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[11] **Lanza, G. (2022). The fundamental role of international (criminal) law in the war in Ukraine. *Orbis*, *66*(3), 424-435. https://doi.org/10.1016/j.orbis.2022.05.010**

[12] **Ablamskyi, S., Tchobo, D. L., Romaniuk, V., Simic, G., & Ilchyshyn, N. (2023). Assessing the responsibilities of the international criminal court in the investigation of war crimes in Ukraine. *Novum Jus*, *17*(2), 353-374. https://ssrn.com/abstract=4583856**

[13] **Shcherbaniuk, O. V. & Sinkevych, O. V. (2023). The role of non-governmental human rights organisations in ensuring the collection of evidence for the international criminal court in the context of the war in Ukraine. *Scientific Bulletin of Uzhhorod University. Series: Law*, *2*(80), 395-402. http://visnyk-pravo.uzhnu.edu.ua/article/view/297103/290038**

[14] **Bailliet, C. M., & O'Connor, S. (2019). The good faith obligation to maintain international peace and security and the pacific settlement of disputes. In: C. Bailliet (Ed.). *Research Handbook on International Law and Peace* (pp. 83-106). Edward Elgar Publishing. https://doi.org/10.4337/9781788117470.00013**

[15] **Murachov, R. V. (2023). Peculiarities of interaction between Ukraine and the International Criminal Court: legal aspects. *Electronic scientific publication "Analytical and Comparative Law"*, *5*, 654-658. https://doi.org/10.24144/2788-6018.2023.05.115**

[16] **Drozdov, O. M., Drozdova, O. V., Karpenko, M. O., Zuiev, V. V. (2022). Cooperation with the International Criminal Court: organisational, jurisdictional and criminal procedural aspects. *Legal Scientific Electronic Journal*, *8*, 484-492. http://lsej.org.ua/8_2022/110.pdf**

[17] **Hrushko, M. V. (2023). Cooperation between the International Criminal Court and Ukraine in connection with international armed conflict. *Academic Visions*, *23*, 1-8. https://academy-vision.org/index.php/av/article/view/679**

[18] **Pymenova, A., & Kuzmenko, V. (2022). Development of International Criminal Justice. *SWorld Journal*, *2*(13-02), 90-97. https://doi.org/10.30888/2663-5712.2022-13-02-042**

[19] **Krupchan, O., Salmanova, O., Makarenko, N., Paskar, A., & Yatskovyna, V. (2023). Access to Justice within Administrative Proceedings of Ukraine: Modern Realities and European Experience.**

implementing European standards will lead to adequate access to justice in Ukraine and increase public trust in the judiciary. In contrast, Chernetska[20] underpins the importance of the ratification decision with Ukraine's European integration ambitions and the prospect of membership in the North Atlantic security system. The Rome Statute was ratified in Ukraine on January 1 2025, leading to new international justice developments. Given the amendments to the Rome Statute that added Russia's war against Ukraine as a crime to the ICC's jurisdiction, a state must confirm the ICC's jurisdiction over aggression in order for its citizens to be tried for the crime, which Russia has not done[21]. Because of this limitation, many officials and other stakeholders have been pushing for creating a separate tribunal to prosecute Russian officials for aggression. Among the representatives of the academic community, supporters of the creation of a specialised criminal tribunal are Filatov et al.[22], Florczak et al.[23], Kersten[24], Popov et al.[25], who identify the reasons for concern about the future situation, as well as the advantages and prospects of its creation to bring Russian criminals to justice.

***Instituto de Estudios Políticos y Derecho Público "Dr Humberto J. La Roche" de la Facultad de Ciencias Jurídicas y Políticas de la Universidad del Zulia Maracaibo, Venezuela*, *41*(77), 102-115. https://doi.org/10.46398/cuestpol.4177.07**

[20] **Chernetska, O. V. (2023). Cooperation between Ukraine and the International Criminal Court in the field of responsibility for crimes against humanity. *Irpin Legal Journal*, *3*(12), 299-308. http://dx.doi.org/10.33244/2617-4154-3(12)-2023-299-308**

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[24] **Kersten, M. (2025). The International Criminal Court's Pursuit of Justice and Legitimacy. *Current History*, *124*(858), 15-20. https://doi.org/10.1525/curh.2025.124.858.15**

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JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

Methods

The following methods were used in the research:

- the synthesis of literature sources was used to identify key characteristics and aspects of the functioning of international judicial bodies for the achievement of international justice;
- historical analysis was applied to understand the impact of international justice on peace and prosperity in the world during the existence of the International Criminal Court and other international judicial bodies;
- the analysis of legal acts was carried out to form a chronology of the creation of fundamental documents characterising the process of fulfilling the tasks of the International Criminal Court and other international judicial bodies;
- the systematisation method was used to understand the impact and role of the International Criminal Court and other international judicial bodies in the war-related proceedings in Ukraine;
- the generalisation method was applied to formulate further priority areas for developing the International Criminal Court and other international judicial bodies in the war-related proceedings in Ukraine.

2. EVOLUTION OF THE PRINCIPLE OF PEACEFUL RESOLUTION OF INTERNATIONAL CONFLICTS

Historical experience shows that resorting to peaceful means of resolving international conflicts is the only possible and logical way to resolve disputes. The principle of peaceful settlement of international disputes was first officially enshrined in the UN Charter in 1945. According to the obligations set out in Article 33 of the Charter, international conflicts are resolved based on the sovereign equality of States. However, this article also provides for the observance of the principle of free choice of means of peaceful settlement of international conflicts and the principles of justice and international law[26]. Further documents that reinforce the international community's desire to create an effective mechanism for the prevention and resolution of international conflicts include the 1970 Declaration on Principles of International Law

[26] **UN (1945). United Nations Charter.** ***United Nations.*** **https://www.un.org/en/about-us/un-charter/full-text**

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

concerning Friendly Relations and Cooperation among States by the Charter of the United Nations; the 1982 Manila Declaration on the Peaceful Settlement of International Disputes; the 1988 Declaration on the Prevention and Elimination of Disputes and Situations Which May Threaten International Peace and Security and on the Role of the United Nations in this Field[27], as well as the European Convention on the Peaceful Settlement of Disputes of 1957 and the Final Act of the Organisation for Security and Co-operation in Europe (OSCE; until 1995, CSCE) of 1975 at the regional level[28].

3. DEVELOPMENT OF THE SYSTEM OF INTERNATIONAL CRIMINAL JUSTICE

The further development of the institution of international criminal liability of individuals is associated with the establishment of two international criminal tribunals by the Security Council under Chapter VII of the UN Charter[29]: The International Criminal Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991 (ICTY)[30], and the International Criminal Tribunal for the Prosecution of Persons Responsible for Genocide and Other Serious Violations of International Humanitarian Law committed in the territory of Rwanda and Rwandan nationals responsible for genocide and other such violations committed in the territory of neighbouring states between January 1 1994 and December 31 1994 (ICTR)[31], and the establishment of a permanent International Criminal Court (ICC)[32].

Subsequently, other mixed (hybrid) criminal tribunals and specialised courts were established to try the most serious crimes of international concern: Mixed (hybrid) courts in Kosovo (1999); Colleges with Exclusive Jurisdiction for Serious Crimes in East Timor (2000); Special Court for Sierra Leone (2002); War Crimes Division of the Court of Bosnia and Herzegovina (2005); Extraordinary Chambers in the Courts of Cambodia to prosecute crimes committed during the period of Democratic Kampuchea (2006). These judicial bodies serve as fundamental components of the international criminal justice system, which is currently being established. They possess distinct institutional creation, formation, legal regulation, and operation models. Mixed (hybrid) criminal tribunals and specialised courts complement the permanent International

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[27] **Trindade, A. A. C. (2020).** ***Id.***

[28] **Bailliet, C. M., & O'Connor, S. (2019).** ***Id.***

[29] **UN (1945).** ***Id.***

[30] **UN Security Council (1993). Resolution 827 (1993) / adopted by the Security Council at its 3217th meeting, on May 25 1993.** ***United Nations*****. https://digitallibrary.un.org/record/166567?ln=en&v=pdf**

[31] **UN Security Council (1994). Resolution 955 (1994) / adopted by the Security Council at its 3453rd meeting, on November 8 1994.** ***United Nations*****. https://digitallibrary.un.org/record/198038?ln=en&v=pdf**

[32] **ICC (1998).** ***Rome Statute of the International Criminal Court*****. https://www.icc-cpi.int/sites/default/files/2024-05/Rome-Statute-eng.pdf**

Criminal Court. However, in the context of the current geopolitical situation, Ochs[33] notes the lack of modern mechanisms of cooperation and coordination between the ICC and other judicial institutions, including criminal tribunals and specialised courts, which creates an inconsistent approach to justice and, as a result, contributes to the growing gap in accountability for international crimes. Therefore, in addressing the issue of accountability for Russian aggression, the author emphasises the need for a potential new court, which could be styled as a mixed tribunal combining international and Ukrainian elements, to prosecute Russian crimes.

4. PROBLEMS OF ICC JURISDICTION AND THE RESPONSE OF STATES

During the Paris Peace Conference in 1919, the idea of establishing an international criminal court to prosecute political figures accused of international crimes emerged after the First World War. During a conference held in Geneva under the auspices of the League of Nations in 1937, the matter was revisited, and the initial convention establishing a permanent international tribunal to examine international terrorist offences was adopted. 13 states signed the Convention. However, at that time, none of them ratified it. Therefore, the Convention did not enter into force. Despite the urgency of the issue of establishing an international body for conflict prevention and resolution and its constant cultivation by the international community (in particular, after the Nuremberg and Tokyo trials of perpetrators of war crimes, crimes against peace and humanity during World War II (1939-1945), after the end of the Cold War (1980-1990), only specific tribunals were established to investigate crimes committed at a specific time and within a specific conflict (e.g., the aforementioned ICTY to investigate crimes during the civil war in the former Yugoslavia and the ICTR to punish the perpetrators of the Rwandan genocide). However, according to Mettraux[34], the effectiveness of such measures has shown that the international community needs such a body permanently, given the frequency of geopolitical tensions. During its 52nd session, the General Assembly resolved to convene a diplomatic conference in Rome in 1998, under the guidance of the United Nations, with participation from all nations. On July 17 1998, following a vote in which 120 nations ratified the Rome Statute, the international community endorsed it as the legal foundation for establishing a permanent international criminal court. The ICC officially began its permanent operations in 2002, but its investigations until 2006 focused on conflicts in Africa. To date, the court has considered 32 cases related to war crimes, crimes against humanity and genocide, including conflicts in the Democratic Republic of the Congo, Sudan

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[33] **Ochs, S. L. (2024). A Framework for Synergy: Synthesising the Relationship Between the International Criminal Court and Hybrid Tribunals. *Berkeley Journal of International Law*, *42*, 92. http://doi.org/10.2139/ssrn.4384582**

[34] **Mettraux, G. (2002). Crimes against Humanity in the Jurisprudence of the International Criminal Tribunals for the Former Yugoslavia and for Rwanda. *Harv. Int'l LJ, 43*(1), 237-316. https://www.researchgate.net/publication/292515845_Crimes_against_humanity_in_the_jurisprudence_of_the_international_criminal_tribunals_for_the_former_Yugoslavia_and_for_Rwanda/citations**

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

(Darfur), Libya, the Central African Republic, Côte d'Ivoire, Uganda and Mali, as well as war crimes committed during the Russian aggression in Ukraine. Some cases concern violence against civilians, destruction of infrastructure, use of prohibited weapons and violations of the rights of prisoners of war.

Trials are conducted using the procedures in the Rome Statute, starting with preliminary investigations, evidence gathering and confirmation hearings, and trials and, if necessary, appeals. Trials are held in public but in compliance with international standards of confidentiality in the most sensitive cases. The countries that have ratified the Rome Statute must cooperate with the court to hand over suspects, provide evidence, execute court decisions and ensure the statute's implementation in national legislation. In case of refusal to cooperate, the ICC has the right to initiate an investigation regardless of the consent of such a state or to apply to the UN Security Council to enforce its decisions. As of 2025, 125 countries (including 33 countries in Africa, 19 in the Asia-Pacific region, 20 in Eastern Europe, 28 in Latin America and the Caribbean, 25 in Western Europe and other countries) have recognised the Rome Statute[35]. The political map of the state parties to the Rome Statute of the ICC is shown in Figure 3.

However, several countries currently have withdrawn their signatures and have not ratified the Rome Statute for various reasons. While China, India, Israel, and Iran believe that the ICC restricts state sovereignty and has too broad a competence, the United States is a different case. Although the United States is not a party to the Rome Statute, it was involved in the negotiations that preceded the creation of the ICC. This was due not only to the political considerations of the then government leaders (during the presidency of B. Clinton in 1993-2001) but also to the further political ambitions of the state. In particular, the fact that the United States participated in the wars in Iraq (2003-2011) and Afghanistan (2001-2021) contributed to the decision to strengthen its defence channels due to the prospect of prosecuting US military personnel for any violations. Moreover, on March 15 2019, a ban on visas for ICC officials involved in the court's possible investigation of US citizens for crimes committed in Afghanistan was announced[36]. The Russian government was guided by similar motives when withdrawing its signature. The annexation of the Autonomous Republic of Crimea by the International Criminal Court on November 14, 2016 was deemed comparable to Russia's international armed conflict on the territory of Ukraine, prompting the President of the Russian Federation to issue an order exempting the state from the jurisdiction of the tribunal.

[35] **ICC (2025). The States Parties to the Rome Statute.** ***International Criminal Court.*** **https://asp.icc-cpi.int/states-parties**

[36] **Human Rights Watch (2019).** ***US Threatens International Criminal Court*****. USA: Human Rights Watch. https://www.hrw.org/news/2019/03/15/us-threatens-international-criminal-court**

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

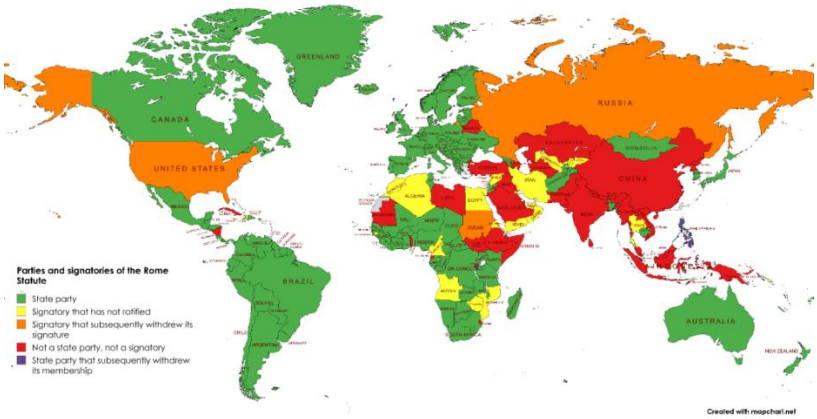


Figure 3. Political map of the world with colour-coded types of states parties to the Rome Statute of the International Criminal Court
Source: compiled by the author based on ICC[37]

5. COOPERATION OF UKRAINE WITH THE INTERNATIONAL CRIMINAL COURT IN THE CONTEXT OF ARMED AGGRESSION BY THE RUSSIAN FEDERATION

Considering the current geopolitical situation of Ukraine, it is important to note that the country signed the Rome Statute in 2000, but its ratification took place only on January 1 2025. However, prior to the ratification, Ukraine, under Article 12(3) of the Rome Statute, recognised the jurisdiction of the ICC over specific crimes committed during a specific period (in particular, during the Maidan from November 21 2013, to February 22 2014, and subsequently throughout Ukraine (including the Autonomous Republic of Crimea, Donetsk and Luhansk regions) from February 20 2014 to the present day. Imoedemhe[38] notes the prospects of this decision, as this step allowed the court to deal with cases related to war crimes, in particular, crimes against humanity, genocide and the crime of aggression against Ukraine committed by Russia. Other benefits include the prospects of nominating its candidate for the position of ICC judge and prosecutor[39], participating in the election of judges and other elected officials[40], effectively cooperating with the ICC, bringing Russian criminals to justice[41], and continuing to pursue the course of European integration[42].

[37] **ICC (2025).** ***Id.***

[38] **Imoedemhe, O. (2023).** ***Id.***

[39] **Rynkun-Werner, R., Kozicki, B., Zelkowski, J., & Krzewniak, D. (2023).** ***Id.***

[40] **Heller, K. J. (2024). Options for prosecuting Russian aggression against Ukraine: A critical analysis.** ***Journal of Genocide Research*****,** ***26*****(1), 1-24. https://doi.org/10.1080/14623528.2022.2095094**

[41] **Sosnina, O., Mykytiv, O., Mykytiv, H., Kolenichenko, T., & Holovach, A. (2021).** ***Id.***

[42] **Chernetska, O. V. (2023).** ***Id.***

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

Consequently, on April 25 2014, the ICC Prosecutor officially initiated a preliminary investigation into the situation in Ukraine. During the case investigation, the Office of the ICC Prosecutor was mandated to determine if sufficient evidence of crimes of sufficient gravity existed to fall within the jurisdiction. Subsequently, on September 29 2015, the ICC prosecutor extended the preliminary examination of the situation in Ukraine, specifically regarding the Russian Federation's aggression. It was with these actions that the Ukrainian prosecutor's office began cooperation with the ICC on events related to the ongoing armed conflict between Ukraine and Russia. Since 2015, Ukraine has sent 21 information reports on war crimes and crimes against humanity committed by Russian citizens both in the Autonomous Republic of Crimea and in eastern Ukraine to the Office of the Prosecutor of the ICC. The Department provided additional necessary information regularly and thus established further communication.

The present stage in advancing international criminal justice in Ukraine is characterised by more decisive actions by the ICC and other international judicial institutions in the proceedings about the conflict in Ukraine. The start of Russia's full-scale invasion of Ukraine in March 2022 signalled the initiation of a formal investigation into violations committed in the country. Throughout the year, special teams were set up to collect evidence of war crimes, crimes against humanity and genocide, including exhumations and evidence collection. In parallel, there was systematic coordination with the Ukrainian authorities to collect evidence on the ground. The cooperation resulted, first of all, in the issuance of arrest warrants for several Russian high-ranking officials, as well as (given the ICC's priority areas for 2023-2025) Russian President Vladimir Putin and official M. Lvova-Belova, suspected of kidnapping Ukrainian families from the occupied territories of Ukraine to Russia from under their legal guardianship.

Another fact of the case's progress is the signing, on March 23 2023, of the Agreement on the opening of a special field office of the ICC prosecutor in Kyiv. Moreover, on September 14, the institution started working in Ukraine. Although opening such an ICC field office in Ukraine will not mainly accelerate the formation of the tribunal, its functioning is aimed at keeping records of Russia's criminal actions and continuing to collect evidence rather than direct action against the aggressor. Therefore, Dutton and Sterio[43] note that the intensification of the actions of international experts is currently prompt and stable, which ensures the quality of investigations at the crime scenes, and no less important is the contribution of Ukrainian law enforcement agencies, which intensify investigations into specific types of crimes. Thus, the International Criminal Court's role is to prevent and respond promptly to international conflicts, guided by the principles of the rule of law and universality in implementing international criminal justice standards. In order to ensure the effectiveness of measures to achieve international criminal justice in the processes related to the war in Ukraine, the main tasks of the ICC, according to Lanza[44], are to coordinate international efforts to collect evidence of war crimes committed by Russian citizens against the Ukrainian

[43] **Dutton, Y., & Sterio, M. (2022).** ***Id.***

[44] **Lanza, G. (2022).** ***Id.***

JOURNAL OF LAW AND POLITICAL SCIENCES (JLPS)
P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

people, crimes against humanity and genocide, provide legal support to national investigations, and prepare for trials against those responsible for violations of international humanitarian law. However, Murachov[45] notes the ineffectiveness of limiting the resolution of Russia's war crimes to domestic means, which may prove ineffective.

Other international judicial bodies (unlike the ICC, which began its investigation in 2014) determined their position on the war-related processes in Ukraine at the beginning of the full-scale war. In particular, in 2022, Ukraine filed a lawsuit against Russia with the International Court of Justice, accusing it of abusing the Convention on the Prevention and Punishment of the Crime of Genocide of January 12 1951[46], as the Russian government used this Convention as a justification for its invasion, claiming that Ukraine was allegedly committing genocide in the (occupied) Donetsk and Luhansk regions. In response to the precedent, on March 16 2022, the International Court of Justice issued a preliminary ruling ordering Russia to immediately cease hostilities on the territory of Ukraine. Due to Russia's deliberate disregard for this binding decision, the case is still pending a hearing to determine the jurisdiction and legitimacy of Ukraine's allegations and establish Russia's accountability for military aggression and further violations of international law. Ike et al.[47] note that due to Russia's disregard for the international community's demands to end hostilities on the territory of Ukraine, the EU countries, together with the EU, initiated the creation of a Special Military Tribunal to bring the Russian leadership to justice for crimes committed during the military aggression. The actions of the European Court of Human Rights (ECtHR) in 2022, the institution also called on Russia to refrain from attacking civilians and civilian infrastructure. During the first year of the full-scale war, the ECtHR considered numerous applications filed by Ukrainian citizens and organisations concerning human rights violations, including mass killings, torture and illegal detentions. After Russia's expulsion from the Council of Europe in 2023, the ECtHR continues to consider cases relating to crimes committed before its expulsion. This decision ensures victims' access to justice and preserves the mechanisms of international influence on Russia. Thus, the role of international judicial bodies, in particular the International Court of Justice and the European Court of Human Rights, is to address the urgent issues of war crimes committed by Russia in the course of its large-scale war in Ukraine. The legal response of international judicial bodies to Russia's criminal actions against the Ukrainian military contingent and civilians is carried out by adopting decisions confirming violations of international law, creating legal mechanisms to protect victims, documenting war crimes, and maintaining mechanisms of pressure on the aggressor state to bring it to justice

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[45] **Murachov, R. V. (2023). *Id.***

[46] **UN (1951). Convention on the Prevention and Punishment of the Crime of Genocide. Adopted by the General Assembly of the United Nations on December 9 1948. *United Nations Treaty Collection*, 1-25. https://treaties.un.org/doc/publication/unts/volume%2078/volume-78-i-1021-english.pdf**

[47] **Ike, C. N., Udumaga, C. C. U., & Osudibia, N. N. (2024). International Law and Its Challenges in the Russia-Ukraine War. *African Journal of Social and Behavioural Sciences*, *14*(6), 37100-3715. https://journals.aphriapub.com/index.php/AJSBS/article/view/2857**

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P.ISSN 2222-7288 E. ISSN 2518-5551
VOL. 45-2-ISSUE 3-June 2025 -Special issue
IMPACT FACTOR 2.329
First edition 2011

The war in Ukraine has significantly changed the landscape of international criminal justice, bringing to the fore the issue of the effectiveness of international judicial bodies, in particular the International Criminal Court (ICC). An analysis of the literature shows that, despite significant achievements in investigating international crimes, the number of challenges associated with modern armed conflicts is increasing. These challenges are primarily related to the scale of documented crimes[48], the limited jurisdiction of the ICC[49], and the need for practical cooperation between state and international institutions[50, 51], as well as non-governmental organisations, especially human rights and humanitarian law organisations[52].

One of the key aspects that has gained relevance in connection with the war in Ukraine is Ukraine's ratification of the Rome Statute. As studies by Drozdov et al.[53] and Chernetska[54] show, ratification has opened up new opportunities for the state's full involvement in international justice processes, providing additional guarantees for the prosecution of criminals. However, as noted by Popov et al.[55], there is a need to address the problems associated with the application of the principle of universal jurisdiction, as Russia, which is not a party to the Rome Statute, does not recognise the ICC's decisions, which complicates the implementation of the principle of inevitability of punishment. In this context, Avci[56] expresses concern about the invulnerability of these individuals to international justice, particularly the ICC. However, the author emphasises that the warrant is a clear sign that sitting heads of state are not immune from the ICC. However, its implementation mainly depends on the international community, especially given that the Russian president has restricted his movement to countries not parties to the Rome Statute.

In addition, in the context of the war, the idea of creating a specialised criminal tribunal to prosecute Russian officials for the crime of aggression has emerged, supported by several contemporary scholars: Florczak et al.[57], Ike et al.[58], Ochs[59], Popov

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[48] **Trindade, A. A. C. (2020).** ***Id.***

[49] **Krupchan, O., Salmanova, O., Makarenko, N., Paskar, A., & Yatskovyna, V. (2023). Access to Justice within Administrative Proceedings of Ukraine: Modern Realities and European Experience.** ***Instituto de Estudios Políticos y Derecho Público "Dr Humberto J. La Roche" de la Facultad de Ciencias Jurídicas y Políticas de la Universidad del Zulia Maracaibo, Venezuela*****, *41*(77), 102-115. https://doi.org/10.46398/cuestpol.4177.07**

[50] **Bailliet, C. M., & O'Connor, S. (2019).** ***Id.***

[51] **Lanza, G. (2022).** ***Id.***

[52] **Shcherbaniuk, O. V. & Sinkevych, O. V. (2023).** ***Id.***

[53] **Drozdov, O. M., Drozdova, O. V., Karpenko, M. O., Zuiev, V. V. (2022).** ***Id.***

[54] **Chernetska, O. V. (2023).** ***Id.***

[55] **Popov, G., Puhach, A., Shkolnikov, V., Baranovska, T., & Orobets, K. (2024).** ***Id.***

[56] **Avci, M. (2023).** ***Id.***

[57] **Florczak, A., Jach, A., & Rosłon-Żmuda, J. (2025).** ***Id.***

[58] **Ike, C. N., Udumaga, C. C. U., & Osudibia, N. N. (2024).** ***Id.***

[59] **Ochs, S. L. (2024).** ***Id.***

et al.[60]. Although this approach is the subject of academic debate, many researchers[61, 62] believe such a tribunal could ensure individualised punishment and serve as an instrument of international pressure. According to Mettraux[63], such a need is precisely the creation of a permanent specialised criminal tribunal, given the trend of increasing geopolitical tension. Our study found that Russia's full-scale invasion of Ukraine is currently the most significant catalyst for change in international criminal justice. The experience gained by the international community in the course of this war points to the need to update mechanisms and thoroughly rethink approaches to international justice. The Russian aggression has also demonstrated the need to integrate international, national and non-state initiatives to more effectively fight impunity for Russian citizens guilty of war crimes and ensure justice for all states at the international level.

6. CONCLUSION

The role of the International Criminal Court and other international judicial bodies in the war-related proceedings in Ukraine is manifested through its multidimensional impact on the establishment of the international legal order, ensuring justice and documenting the aggressor's crimes. The ICC is a key instrument aimed at combating impunity for war crimes, crimes against humanity and genocide, acting by the principles of universality and the rule of law. The opening of an official investigation and the issuance of arrest warrants for high-ranking officials of the Russian Federation, including the President of the aggressor state, demonstrate the institution's steadfastness in bringing perpetrators to justice regardless of their political status. At the same time, the ICC's activities are enhanced by opening a field office in Kyiv, which ensures a prompt response to crimes by recording evidence on the ground. This activity contributes to forming a solid evidence base for future trials. Meanwhile, other international judicial institutions, such as the International Court of Justice, focus on determining state responsibility for aggression, confirming violations of international law, and creating conditions for further application of sanctions and legal mechanisms. Its decisions oblige the aggressor state to cease hostilities, thus emphasising the inevitability of criminal liability. The European Court of Human Rights, in turn, retains its influence despite Russia's withdrawal from the Council of Europe, ensuring access to justice for victims and documenting numerous cases of human rights violations, including mass killings and torture. These measures on a unified architecture of

[60] **Popov, G., Puhach, A., Shkolnikov, V., Baranovska, T., & Orobets, K. (2025).** ***Id.***

[61] **Filatov, V., Zuieva, O., Yefim ova, I., Pylypenko, A., & Leheza, Y. (2025).** ***Id.***

[62] **Kersten, M. (2025).** ***Id.***

[63] **Mettraux, G. (2002).** ***Id.***

international justice are aimed at condemning the aggressor and supporting the principles of justice, legality and protection of victims' rights globally

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2. Avci, M. (2023). Arresting Putin: Easier Said Than Done. *South East Europe & Black Sea Region*, *8*, 32-38. https://peacehumanity.org/wp-content/uploads/2023/06/SEE-BSR-Issue-8.pdf#page=32
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